

SumUp General Terms & Conditions

Effective as of 10/12/2024

Note: Please print a copy of this document and retain it for future reference.

Introduction

These General Terms and Conditions (“General Terms”) are a legal agreement between you and SumUp Payments Limited (“SumUp”, “we”, “us”) governing your use of our products and services, including our software, hardware, mobile applications (“App”), and websites (“Website”) (together, the “Services”), whether such Services are offered by SumUp or a affiliate of SumUp (together, “SumUp Group”).

By creating a SumUp Account (defined below) or using any of the Services, you accept and agree to these General Terms. You also agree to any additional terms and conditions specific to the products and services you use (“Additional Terms”), which become part of your agreement with us. If you create a SumUp Account on behalf of a business, you represent that you have authority to do so, and you agree that you are accepting these General Terms and any Additional Terms on behalf of that business. If you do not agree to these General Terms and any Additional Terms that apply to you, you are not permitted to use the Services.

Additional Terms are linked below and can be found on the [Legal page](#) of our Website.

- [Payment Terms](#)
- [Alternative Payment Method Terms](#)
- [E-commerce Terms](#)
- [Invoicing & Accounting Terms](#)
- [Gift Card Terms](#)

- [API License Terms](#)
- [Point of Sale Services Terms](#)
- [Merchant Services Agreement](#)
- [Bookings Terms](#)
- [24/7 priority support Terms & Conditions](#)

It is important that you understand your responsibilities under these General Terms and any applicable Additional Terms. Please read all of the terms and conditions carefully.

If you have any questions, concerns, or complaints about the General Terms, the Additional Terms, or the Services—or if you want to request a copy of the General Terms and any Additional Terms—please contact SumUp’s Customer Support at support@sumup.co.uk or via the [online chat](#) facility available on our Website. Thank you, and we look forward to helping you build your business.

1. Creating your SumUp account

To use the Services, you must be at least 18 years old and register an account with us (“SumUp Account”, “Profile” or “Account”). By accepting these Terms you confirm that you are an entrepreneur, freelancer, or business owner and use the services exclusively for business use. Minors are prohibited from registering.

You may only register for one SumUp Account, unless we explicitly approve the opening of additional Accounts. You may create or cause the creation of sub-accounts for your authorised employees or other representatives and/or give access to other users, part of your team (“Authorised User”). Through such sub-accounts and/or authorized access your Authorised Users can access your SumUp Account and use the Services on your behalf. Any Authorised Users must be separately registered with us, and it is your responsibility to ensure that they comply with these General Terms and any applicable Additional Terms. We reserve the right to limit the number of your sub-accounts and to refuse the registration of your Authorised Users.

In connection with registering for and using your Account, you may be asked to provide your name, e-mail address, and other information. We will use the information for a number of purposes, including to verify your identity, perform credit checks and to meet our legal and regulatory obligations. You can read more about how we use your data in our [Privacy Policy](#). You must provide complete and accurate information to SumUp and keep the information in your SumUp Account up-to-date. You can inform us of any changes by contacting SumUp [Customer Support](#). We reserve the right to suspend or terminate your Account, and/or limit access to any of the Services, if you do not provide complete and accurate information or if you fail to meet any Account registration or verification requirements.

2. Data privacy

Data privacy is important to us. By accepting these General Terms and creating a SumUp Account, you acknowledge that you have read SumUp's [Privacy Policy](#), which explains how SumUp and its affiliates process and protect your personal data when they act as a data controller. Any questions relating to data protection should be directed to DPO@sumup.com.

3. Securing your SumUp account

SumUp has adopted various measures designed to keep your information secure, but you also play an essential role in preventing unauthorised access to your Account. You are responsible for safeguarding your Account password and login information. Do not write down your password or store it electronically in an unsecured manner. Do not store your password on or with your computer or mobile device. Never share your password with anyone and when entering it ensure that no one else can see it. You must change your password and immediately notify SumUp [Customer Support](#) if your password or login information is lost or stolen, if there is unauthorised access to your Account, or if you discover or suspect any other potential security breach.

4.Product, services & fees

SumUp and its affiliates may offer various products or services as part of the Services, governed in part by Additional Terms. By using such Additional Services you agree to any relevant Additional Terms, and those Additional Terms will apply between us (or our affiliate) and you with respect to the Additional Services. These General Terms also will apply to the Additional Services unless otherwise provided for in the Additional Terms.

SumUp and its affiliates may offer certain Services to be paid by you on a recurring basis or on an as-used basis ("Fees"). By using such Services, you agree to pay the fees and any applicable taxes in accordance with the terms of the relevant Additional Terms. Fees may be paid by various payment methods made available by SumUp. You agree and authorise that SumUp, on its own behalf or as an agent for its affiliates, may collect fees for Services via any available method, including charging a debit card or credit card linked to your Account or deduction from your transaction proceeds. Current [Fees](#) can be found on our Website.

Fees charged on a recurring basis ("Subscription Fees") will be charged upon purchase, as well as on the relevant renewal date until cancelled. Your Subscription Plan will renew automatically unless cancelled. You can cancel your Subscription Plan at any time, and you will continue to have access to the relevant product or service until the end of your current subscription period, when the next Subscription Fee is due to be paid. Subscription Fees are non-refundable, and we do not provide refunds or credits for any partial subscription periods or unused services.

If a payment is not successfully settled, due to expiration, insufficient funds, or otherwise, and you do not cancel your subscription plan, we may suspend your access to the relevant product or service until we have successfully received a payment of the Subscription Fee. Notwithstanding any provision to the contrary herein, in the event of non-payment of the Subscription Fee, even if such non-payment occurs on a singular occasion, SumUp shall be entitled to either terminate this Agreement forthwith or suspend the provision of services to the

party, without necessitating any prior notification. SumUp reserves the right to charge you a fee for any related additional costs (such as banking fees) incurred by SumUp in relation to investigating or mediating any failed Subscription Fee payments.

SumUp reserves the right to bill fees from any entity in the SumUp Group and to change billing entities as it deems appropriate.

Notice on the right of withdrawal

SumUp provides all its services and products exclusively to entrepreneurs and businesses as stated above. Accordingly, there is no right of withdrawal.

5. Notices and communication

We may need to reach you from time to time regarding your Account or use of the Services. You agree that we can provide written notice and other information to you by sending it via email to the primary email address associated with your Account or via text message to the primary mobile telephone number associated with your Account, pushing it via the Services, and/or by publishing it on our App or Website. Any such electronic communication will be considered received by you within 24 hours of transmission, so please make it a habit to check your Account and email regularly. Please also be sure to keep the email address and other contact information in your Account accurate and up-to-date, as we will not be responsible if a communication does not reach you because you failed to do so. We also reserve the right to contact you by mail or by telephone, as necessary. Any communication or notice sent by mail will be deemed received by you 7 days from the date of mailing.

To the extent we are able, we will communicate to you using the language of the country you choose during registration; however, we reserve the right to communicate to you in English as necessary, and you agree that communication in English is adequate for all purposes under these General Terms and any Additional Terms.

6. Compatibility and third party services

Your use of the Services may require that you have a compatible mobile device and access to the Internet. Any fees charged by third parties for mobile devices, network or Internet access, or related services in connection with your access to or use of the Services are solely your responsibility to pay. While we do our best to keep an up-to-date list of [compatible mobile devices](#) on our Website, we do not warrant that the App or the Services will be compatible with your mobile device, mobile carrier, or Internet service provider. You may not use the Services with a mobile device that has been modified contrary to the manufacturer's software or hardware guidelines.

7.App

In order to use certain Services, you may need to download and install our App. You must download and use the most recent version of the App that is available for your mobile device, including downloading and installing any updates that become available from time to time.

8. Your content

In connection with your SumUp Account and your use of the Services, you may be able to upload or provide text, photos, logos, products and other materials or information ("Content"). You agree that you will not upload or provide any Content unless you have created that Content yourself or you have permission from the Content owner to do so. You grant us, our affiliates and our successors a worldwide, non-exclusive, royalty-free, fully-paid, transferable, and sub-licensable right to use, reproduce, modify, adapt, publish, prepare derivative works of, distribute, publicly perform and publicly display your Content in any media in order to provide and promote the Services. You retain all rights in your Content, subject to the rights granted to us in these General Terms. You may modify or remove your Content via your Account or by closing your Account, but your Content may

persist in historical, archived or cached copies and versions thereof available on or through the Services.

You agree not to upload or provide Content or otherwise post, transmit, distribute, or disseminate through the Services any material that: (i) is false, misleading, unlawful, obscene, indecent, lewd, pornographic, defamatory, threatening, harassing, hateful or abusive; (ii) encourages conduct that would be considered a criminal offense or gives rise to civil liability; (iii) breaches any duty toward or rights of any person or entity, including rights of publicity, privacy or intellectual property; (iv) contains corrupted data, computer viruses, malware or any other harmful, disruptive or destructive files; or (v) in our sole judgment, is objectionable or which may expose us, our affiliates or customers to harm, disrepute or liability of any nature.

Although SumUp has no obligation to monitor any Content, we reserve the right to remove Content at any time and for any reason without notice. You understand that by using the Services, you may be exposed to Content that is offensive, indecent or objectionable. Neither SumUp nor its affiliates take any responsibility or assume any liability for any Content, including any loss or damage to any of your Content.

9. Our intellectual property

SumUp's intellectual property rights ("IP Rights") include any and all rights related directly or indirectly to the Services, the App, the Website, Internet domain names, content, technology related to the Services, and logos, including, but not limited to, copyrights, moral rights, database rights, trademarks, service marks, name rights, utility models and design rights, patents, and all other exclusive and non-exclusive rights worldwide as may now exist or come into existence, are granted or transferred in.

We (or our licensors) are the exclusive owner of all IP Rights, and nothing in these General Terms or any Additional Terms shall be construed as transfer or concession of the IP Rights to you. You are licensed to use the Services in accordance

with these General Terms and any Additional Terms. The licence is personal, limited, revocable, non-exclusive, non-transferable, and non-sublicensable. You are not otherwise granted any IP Rights.

You agree that you will not access or monitor any material or information on our Website or systems using any data extraction, web scraping or similar process, whether manual or automated. You also agree that you will not copy, reproduce, alter, modify, create derivative works, publicly display, republish, upload, post, transmit, resell or distribute the Services or any material or information made available to you by us.

10. Taxes

You are solely responsible for calculating, collecting, withholding, reporting and remitting to the appropriate tax authorities any and all taxes assessed, incurred, or required to be collected, paid, or withheld for any reason in connection with the use of our Services. We assume no liability in connection with any taxes you might owe in connection with your use of the Services.

11. No warranties

The Services are offered to you on an “as is” and “as available” basis without any warranty or condition, express or implied, except as specifically stated in these General Terms. We do not warrant continuous, uninterrupted or secure access to any part of the Services, and we will not be liable to you for any disruption or impairment of the Services. Although we will do our best to provide you with notice of any planned maintenance or other activity that might interrupt or impair your ability to access or use the Services, we reserve the right to perform such work without notice, as necessary.

12. Restrictions

In addition to any other terms set out in these General Terms and any Additional Terms, you agree that you will not use the Services, and you will not allow any other person to use the Services, (a) in connection with businesses or activities listed on our Website as a [Restricted Business](#); (b) to violate any laws, rules, or regulations applicable to your business; (c) in any fraudulent manner or for any fraudulent purpose; or (d) in any manner that interferes with or disrupts the Services. In accordance with our obligations, we report suspicious activity and cooperate with relevant law enforcement agencies and regulators in relation to our provision of the Services. The Services may not be available, or may only be partially available, in certain countries, and we reserve the right to change availability of the Services without prior notice.

13. Termination

You may terminate these General Terms and any Additional Terms and close your SumUp Account at any time and without charge, and you must do so if you no longer accept and agree to these General Terms and applicable Additional Terms. To do so, please contact SumUp Customer Support at support@sumup.co.uk or via the [online chat](#) facility on our Website.

Some services are offered as part of a "subscription". The subscription can be terminated by you without a period of notice at the end of the respective month or year, depending on which duration you have chosen. The termination can be declared in text form via email to support@sumup.co.uk. If you do not terminate the subscription in time, the subscription period will renew automatically for a subscription period that corresponds to the period of your booked subscription, unless specified differently in the respective subscription you have booked.

Please note that there will be no refund of monthly or annual subscriptions in the event of early termination by you.

We may terminate these General Terms and any Additional Terms and close your SumUp Account at our convenience after providing you appropriate notice in accordance with section 5 of these General Terms. We may also terminate

these General Terms and any Additional Terms or suspend or close your SumUp Account without prior notice if (a) you breach any term or condition of these General Terms or applicable Additional Terms; (b) we have reason to believe that you are in violation of any law or regulation that is applicable to your use of our Services; (c) we have reason to believe that you are in any way involved in any fraudulent activity, money laundering, terrorism financing or other criminal activity; (d) you pose an unacceptable credit or fraud risk to us; (e) a regulatory or law enforcement agency requests us to do so; or (f) we have reason to believe that your SumUp Account has been compromised or otherwise poses a security risk.

If your SumUp Account is suspended or closed, you agree that (a) you will continue to be bound by any relevant provisions of these General Terms and any Additional Terms until any outstanding responsibilities and obligations between you and us are settled; (b) you will immediately stop using the Services; (c) your license to access and use the Services will end; (d) we may delete all information and data relating to your Account that is stored on our servers, unless we are required to keep it under applicable law; and (e) we will not be responsible to you or any third party in connection with terminating your access to the Services or deleting your Account information and data.

If there is no activity in your Account for two consecutive years, we will be entitled to send a notification to your registered email address and in case you do not respond to our notice within thirty days, stating that you want to keep your Account, we will automatically close your Account. You will still be able to redeem any funds held in your Account by contacting Customer Support at support@sumup.co.uk or via the [online chat](#) facility available on our Website.

14. Limitation of liability

To the maximum extent permitted by the law, neither SumUp nor its affiliates will be liable to you for any of the following types of loss or damage arising from these General Terms, any Additional Terms, or your use of the Services:

- (a) indirect or consequential loss or damage (including loss of profits, goodwill,

business, contracts, revenue or anticipated savings even if we are advised of the possibility of such damages); (b) loss or corruption of data; (c) loss or damage that is not a direct result of our breach of these General Terms or any Additional Terms; (d) loss or damage resulting from acts or omissions by you or any third parties; (e) loss or damage resulting from our compliance with requirements imposed on us by applicable laws, regulations, or rules; (f) loss or damage resulting from any event over which we have no reasonable control, such as fires, telecommunications or Internet failures, utility failures, power failures, equipment failures, employment strikes, riots, wars, terrorist attacks, epidemics, pandemics, and non-performance of vendors or suppliers.

Nothing in these General Terms or any Additional Terms is intended to, or will, limit our liability resulting from fraud, gross negligence, or wilful misconduct on the part of SumUp or for death or personal injury resulting from negligence on the part of SumUp.

To the maximum extent permitted by law and subject to the preceding paragraphs, you agree that the total aggregate liability of SumUp and its affiliates to you in connection with any claim or claims arising out of or relating to these General Terms, any Additional Terms, or use of the Services will not exceed the greater of (a) the amount of fees paid by you to us for the Services during the three-month period immediately preceding the event giving rise to the claim for liability or (b) €250 (EUR), or equivalent local value.

15. Indemnification

To the maximum extent permitted by law, you agree to defend, indemnify, and hold us and our respective directors, agents, affiliates and representatives harmless from and against any claim (including all third-party claims), cost, suit, demand, loss, liability, damage, action, proceeding, judgment, penalty, interest and expense (including without limitation reasonable attorneys' fees) arising out of or relating to (a) any actual or alleged breach by you of any provision of these General Terms or any Additional Terms; (b) your wrongful or improper use of the Services; (c) your violation of any third party right, including without limitation any right of

privacy, publicity rights or intellectual property rights; (d) your violation of any applicable law, rule or regulation; and (e) any authorised user or other party's access to or use of the Services through your SumUp Account or any sub-account.

16. Revision and changes

We have the right to change, delete, or add to these General Terms and any Additional Terms, or to change the Services, at any time. If we do so, we will provide you notice as described in section 5 of the General Terms in accordance with our legal obligations. If you don't agree to the revised terms, you must notify us before they go into effect, in which case you may close your Account and terminate these General Terms and any Additional Terms free of charge. Your continued use of the Services after the effective date of revised terms will constitute your acceptance of those terms.

Any revised version of these General Terms or Additional Terms will be posted on our Website and/or communicated to you via the App or Services. We reserve the right to implement changes immediately, without prior notice, if necessary to maintain the security of our systems or to comply with applicable laws, rules and regulations.

17. Assignment

These General Terms, any Additional Terms, and/or any related rights and obligations may not be transferred or assigned by you without our prior written consent, but may be transferred and assigned by us without your consent or other restrictions.

18. Entire agreement; severability

These General Terms and any applicable Additional Terms constitute the entire agreement between you and us with respect to your access to and use of the Services and they supersede and extinguish any and all prior agreements be-

tween you and us concerning your access to and use of the Services. In the event of a conflict between these General Terms, any Additional Terms and any other agreement or policy, these General Terms will prevail on the subject matter of these General Terms and any applicable Additional Terms will prevail on the subject matter of such applicable Additional Terms unless otherwise set out in these General Terms.

In the event any part of these General Terms or any Additional Terms is held to be invalid, unlawful or unenforceable by a court of competent jurisdiction, only that provision will be deemed inoperative and the validity, legality, and enforceability of the remaining provisions will not in any way be affected or impaired. If a court determines that a provision of these General Terms or any Additional Terms is invalid, unlawful or unenforceable, then the court is authorised to modify the provision so as to effect the original intent to the greatest extent possible under applicable law.

19. Survival

Any provision that is reasonably necessary to accomplish or enforce the purpose of these General Terms and any applicable Additional Terms will survive and remain in effect in accordance with its respective terms upon the termination of these General Terms and any applicable Additional Terms.

20. Governing law and jurisdiction

These General Terms and any Additional Terms shall be governed by and construed under and in accordance with English Law. You agree that the courts of England will have exclusive jurisdiction to hear any dispute arising out of or in connection with these General Terms, any Additional Terms, or use of the Services, including the breach, termination or invalidity thereof. Before referring a dispute to court, you agree first to work with us to resolve the matter by amicable negotiations.

ABOUT US

SumUp Payments Limited is authorised by the Financial Conduct Authority under the Electronic Money Regulations 2011 and is a company with limited liability incorporated in England and Wales with its registered number 07836562 and with its registered office at 16-20 Shorts Gardens, London WC2H 9US, UK.